

REQUEST FOR INFORMATION ON THE DEVELOPMENT OF AN ARTIFICIAL INTELLIGENCE (AI) ACTION PLAN

Federal Register Notice: 90 FR 9088

Agency: Networking And Information Technology
Research And Development (NITRD) National
Coordination Office (NCO), National Science Foundation
(NSF)

Crew Training International, Inc.

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POLICY FRAMEWORK FOR AI-ASSISTED FEDERAL PROPOSAL EVALUATION

Issued by: [Federal Agency or Office, e.g., Office of Federal Procurement Policy (OFPP)]

Effective Date: [Insert Date]

Applicable To: All Federal Agencies Using AI in Procurement

I. Purpose

This policy establishes guidelines for the responsible use of Artificial Intelligence (AI) in reviewing, evaluating, and scoring federal proposal submissions. It ensures compliance with the Federal Acquisition Regulation (FAR), maintains transparency and fairness, protects sensitive data, and upholds the integrity of the procurement process.

II. Scope

These policies apply to all federal agencies, acquisition officials, and contractors involved in AI-assisted evaluations of competitive procurements.

III. Policy Directives

1 Compliance and Regulatory Oversight

1.1 Mandate Human Oversight in AI-Assisted Evaluations

Policy: AI may assist in proposal evaluation, but final scoring and award decisions must be reviewed and approved by a human evaluator.

Implementing Entity: Office of Federal Procurement Policy (OFPP) in coordination with agency procurement officials.

1.2 Establish an AI Compliance Framework for Federal Procurement

Policy: Agencies must develop an AI governance framework that aligns with FAR, the Procurement Integrity Act, and agency-specific procurement policies.

Implementing Entity: General Services Administration (GSA), in collaboration with agency acquisition leadership.

1.3 Implement Pre-Award AI Certification Requirements

Policy: Before AI is used in procurement evaluations, it must be certified for compliance with transparency, bias mitigation, and explainability standards.

Implementing Entity: National Institute of Standards and Technology (NIST), in consultation with GSA and OFPP.

2 Transparency and Explainability

2.1 Require AI-Generated Decision Justifications

Policy: AI systems must provide human-readable justifications for scores, directly tied to solicitation evaluation criteria.

Implementing Entity: Agency procurement officials, with oversight from OFPP.

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2.2 Mandate Algorithmic Transparency and Disclosure

Policy: AI vendors must disclose model logic, training data sources, and scoring methodologies before deployment.

Implementing Entity: GSA’s AI Acquisition Policy Office, with enforcement by agency procurement teams.

2.3 Standardize AI Review Documentation for Debriefings

Policy: AI-generated assessments must include clear references to proposal content, ensuring transparency in debriefings and bid protests.

Implementing Entity: Agency Contracting Officers, under the guidance of OFPP.

3 Data Security and Confidentiality

3.1 Restrict AI Model Access and Data Handling

Policy: AI systems handling proposal data must comply with Federal Information Security Modernization Act (FISMA) standards, using role-based access controls.

Implementing Entity: Agency Chief Information Security Officers (CISOs) and Federal Risk and Authorization Management Program (FedRAMP).

3.2 Prohibit Foreign-Owned AI in Federal Procurement

Policy: AI systems used for source selection must be developed, deployed, and maintained on U.S.-based infrastructure.

Implementing Entity: Cybersecurity and Infrastructure Security Agency (CISA) and Department of Defense (DoD) for classified procurements.

3.3 Require End-to-End Encryption for AI-Processed Proposal Data

Policy: Agencies must enforce data encryption protocols when AI handles sensitive proposal information.

Implementing Entity: NIST and agency procurement security teams.

4 Bid Protests and Legal Challenges

4.1 Establish a Dedicated AI Protest Review Process

Policy: GAO will create an AI-specific bid protest process to address concerns about AI-assisted evaluations.

Implementing Entity: Government Accountability Office (GAO) and agency contracting offices.

4.2 Ensure Offeror Access to AI Scoring Criteria

Policy: Prior to submission, offerors must receive an overview of how AI will be used in the evaluation process.

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Implementing Entity: Agency Contracting Officers, in compliance with FAR debriefing requirements.

4.3 Mandate Regular Bias Audits of AI Procurement Models

Policy: AI models must undergo independent audits for bias and fairness on an annual basis.

Implementing Entity: NIST and OFPP, with agency reporting requirements.

5 Human Oversight and Accountability

5.1 Require Human Sign-Off on AI-Assisted Evaluation Scores

Policy: No award determination may be based solely on AI-generated scores; final decisions must be reviewed and signed by a human evaluator.

Implementing Entity: Agency Source Selection Officials (SSOs), under OFPP oversight.

5.2 Establish AI Evaluation Oversight Boards

Policy: Agencies using AI for procurement must create an AI Evaluation Oversight Board to review AI-assisted decision-making.

Implementing Entity: Each agency's Office of Acquisition Policy, in coordination with OFPP.

5.3 Implement an AI Decision Appeals Process

Policy: Offerors must have the ability to appeal AI-generated evaluation outcomes through an established review process.

Implementing Entity: Agency Contracting Officers, with oversight from GAO.

6 Inaccuracies and Misinterpretation

6.1 Require Dual-Layer Review for AI-Assessed Proposals

Policy: AI may perform an initial review, but human evaluators must verify key findings before final scoring.

Implementing Entity: Agency Source Selection Officials, in compliance with FAR Part 15.

6.2 Standardize Proposal Formatting for AI Readability

Policy: Agencies must provide offerors with standardized proposal templates to improve AI processing accuracy.

Implementing Entity: OFPP and GSA's AI Acquisition Office.

6.3 Train AI on Historical Evaluations for Context Awareness

Policy: AI models must be trained using anonymized historical proposal evaluations to improve assessment accuracy.

Implementing Entity: NIST, in coordination with agency procurement officials.

7 IV. Implementation and Compliance

7.1 Oversight and Enforcement

The Office of Federal Procurement Policy (OFPP) will oversee AI integration in federal procurement and ensure compliance with this policy.

Agency Chief Procurement Officers (CPOs) must certify annually that AI-assisted evaluations follow these guidelines.

NIST and GSA will establish an AI evaluation framework to support responsible AI procurement practices.

7.2 Compliance Reporting

Agencies must submit an annual AI Use Report detailing compliance measures, AI impact on evaluations, and audit findings.

GAO will conduct periodic reviews to assess adherence to AI procurement policies.

7.3 Continuous Improvement

This policy will be reviewed and updated every two years to align with technological advancements and legal developments.

CONCLUSION

The responsible integration of AI in federal procurement can enhance efficiency, but it must be implemented with strong governance, transparency, and human oversight. These policies ensure that AI supports, rather than replaces, human judgment, while upholding federal procurement integrity.

AI PROCUREMENT POLICIES: BALANCING INNOVATION AND FAIRNESS WITHOUT BURDENING INDUSTRY

The integration of Artificial Intelligence (AI) in federal procurement evaluations represents a significant opportunity for industry stakeholders, streamlining processes, reducing administrative overhead, and increasing efficiency. However, as with any technological advancement, concerns may arise regarding additional regulatory requirements and the potential burden on contractors. The policies outlined in this framework are designed to facilitate innovation, ensure fair competition, and enhance transparency—without imposing unnecessary constraints on industry partners.

8 Enhancing Fair Competition and Leveling the Playing Field

Far from being restrictive, these policies create a more predictable and equitable procurement environment for all offerors, including small businesses and non-traditional contractors. By requiring AI-driven evaluations to be transparent and explainable, businesses gain better insight into how their proposals are assessed. This reduces ambiguity and ensures companies are competing on a clear, well-defined basis rather than an opaque, AI-driven process that could favor incumbents or larger firms.

- **How This Helps Industry:** Offerors receive greater visibility into AI scoring criteria, enabling them to tailor their proposals more effectively and reduce unnecessary bid protests.
- **Why It's Not a Burden:** Transparency requirements do not require extra effort from industry; instead, they ensure that agencies using AI provide clear guidance on evaluation methodologies, making it easier for businesses to align with expectations.

9 Encouraging Innovation Without Overregulation

AI has the potential to streamline federal proposal evaluations, making the process faster and more efficient. These policies ensure that agencies use AI as a tool to assist human evaluators—not as a rigid, inflexible decision-making system. By requiring human oversight and final approval, the policy preserves the ability of offerors to showcase innovation, unique approaches, and qualitative differentiators that AI alone might overlook.

- **How This Helps Industry:** Businesses that bring **cutting-edge solutions or novel technical approaches** will not be at a disadvantage due to AI misinterpretation of complex methodologies.
- **Why It's Not a Burden:** No additional reporting or certification is required from contractors; instead, federal agencies bear the responsibility of ensuring AI does not introduce bias or unfair exclusions.

10 Reducing Risk of Bid Protests and Increasing Predictability

Bid protests are costly, time-consuming, and disruptive for both agencies and contractors. The policies outlined, including mandated AI bias audits, explainable AI, and clear scoring methodologies, help reduce the risk of protests by ensuring evaluations are conducted in a fair and defensible manner.

- **How This Helps Industry:** A transparent AI evaluation process reduces uncertainty and frustration, making procurement outcomes more predictable and reducing unnecessary legal costs.
- **Why It's Not a Burden:** Contractors do not need to take any additional steps; instead, they benefit from agencies ensuring AI-driven decisions are clear, well-documented, and easily able to be challenged if errors occur.

11 Protecting Proprietary and Sensitive Business Data

One of the primary concerns of industry stakeholders is data security. AI systems processing proprietary proposal data must comply with the highest security standards, including encryption, access controls, and U.S.-based infrastructure. These safeguards ensure that contractor-sensitive information is not exposed to unauthorized access, foreign adversaries, or unvetted AI algorithms.

- **How This Helps Industry:** Contractors gain peace of mind knowing their sensitive proposal information is not at risk of unauthorized AI processing or foreign data exposure.
- **Why It's Not a Burden:** The security requirements apply only to government agencies using AI for evaluations, not to industry partners submitting proposals.

12 Encouraging Collaboration Between Industry and Government

The policies explicitly support a collaborative approach between agencies and industry in refining AI-assisted evaluations. By requiring AI protest transparency, access to scoring methodologies, and human review, industry has a stronger voice in shaping how AI is used in federal procurement.

- **How This Helps Industry:** Businesses can engage in policy discussions, influence AI evaluation processes, and ensure their concerns are addressed before new AI technologies become widely adopted in federal acquisitions.
- **Why It's Not a Burden:** Contractors are not required to modify their proposals, adjust pricing, or take on additional compliance burdens—instead, these policies ensure AI usage enhances fairness, not complicates proposal submissions.

CONCLUSION: A SMART, INDUSTRY-FRIENDLY APPROACH TO AI IN FEDERAL PROCUREMENT

These AI procurement policies are designed to enhance fairness, transparency, and efficiency—without adding regulatory burden or complexity for industry stakeholders. Rather than imposing new compliance requirements on businesses, the policies place the responsibility squarely on federal agencies to ensure that AI is used responsibly.

By promoting clear evaluation criteria, human oversight, data security, and fair competition, this framework protects industry interests while allowing AI to improve the speed and accuracy of federal procurement evaluations. These policies increase trust in AI-assisted procurement, reduce bid protests, and ensure that innovation is recognized—not overlooked—by automated systems.